

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

WRIT PETITION NO. 1254 OF 2023

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

-AND -

IN THE MATTER OF:

Md. Alamgir Hossain

... Petitioner

-VS-

Bangladesh, represented by its Secretary,
Ministry of Power, Energy and Mineral Resource,
Bangladesh Secretariat, Ramna, Dhaka and others

... Respondents

Mr. Niaz Murshed, Advocate

... For the Petitioner

Mr. Md. Kamal Hossain Meahzi, Advocates

... For the respondent No. 2 &3

Present:

Mr. Justice Zafar Ahmed

And

Mr. Justice Md. Bashir Ullah

Heard on: 12.10.2023

Judgment on: 19.10.2023.

Md. Bashir Ullah, J.

On an application under Article 102 of the Constitution of the
People's Republic of Bangladesh, the Rule was issued on 19.02.2023,
calling upon the respondents to show cause as to why the inaction of the
respondents in restoring gas connection under Customer ID No. 1040943
despite acceptance of the outstanding dues as well as compliance of the
inter-divisional decision dated 09.12.2020 and physical inspection report

dated 10.12.2020 of the respondent Nos. 2 to 5 should not be declared to have been done without lawful authority and is of no legal effect and as to why the respondents should not be directed to restore the gas connection of the petitioner under Customer ID No. 1040943 and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts, relevant for disposal of this Rule, in brief, are that the petitioner obtained a residential gas connection from the Titas Gas Transmission and Distribution Company Limited in 1980. The petitioner had been paying the gas bill till 12.10.2017 regularly but subsequently failed to pay the bill for few months due to his illness and resultantly the amount of Tk.3,27,602/- became due. Hence, the respondents disconnected the gas line of the petitioner on 23.10.2019.

The petitioner filed an application on 06.09.2020 before the respondents to restore the gas connection of the petitioner upon receiving the outstanding dues of the gas bill. Subsequently, the petitioner filed another application on 15.11.2020 before the respondents requesting to restore the gas connection upon accepting the dues. Thereafter, the respondents verbally directed the petitioner to pay the dues amounting to Tk. 3,92,707/- and accordingly, the petitioner paid the dues and surcharge on 03.12.2020. The respondents by its inter departmental decision dated 09.12.2020 acknowledged the payment and directed to take necessary steps to restore the gas connection of the petitioner. After that, the respondents conducted physical inspection on the premises of the petitioner and thereby submitted a report on 10.12.2020. The writ petitioner has been eagerly waiting for restoration of the said gas connection, but in vain. In order to

redress the petitioner again on 19.01.2021 filed application before the respondents for restoring the gas connection but the respondents have not paid any heed to the same.

Finding no alternative efficacious remedy the petitioner filed the instant writ petition and obtained Rule.

Titas Gas Transmission and Distribution Company Ltd as respondent No. 2 contested the Rule by filing an application for discharging the Rule Nisi.

The case of the respondent No. 2 is that the gas connection of the writ petitioner was disconnected on 23.10.2019 due to arrear dues of Tk. 3,92,707/-. The petitioner applied for re-connection on 15.11.2020 and paid dues on 03.12.2020 after the expiry of 1(one) year from the date of disconnection and as such, he is not entitled to get reconnection of gas line due to barriers imposed upon the respondents under Clause 7.2.5 of the গ্যাস বিপন্ন নিয়মাবলী, ২০১৪.

Mr. Niaz Murshed, learned Advocate appearing for the petitioner submits that the petitioner is a good consumer of the Titas Gas Transmission and Distribution Company Limited since 1980. The petitioner paid the gas bill till 12.10.2017. He failed to pay the gas bill for few months due to his illness. So, the respondents disconnected the gas line on 23.10.2019. The petitioner filed an application dated 06.09.2020 before the respondents to restore the gas connection upon accepting all arrears and subsequently the petitioner filed another application dated 15.11.2020 requesting to restore the gas connection. Thereafter the respondents verbally directed the petitioner to pay the dues amounting to

Tk. 3,92,707/- and accordingly the petitioner paid the dues amount along with surcharge on 03.12.2020. The respondents by its inter departmental decision dated 09.12.2020 acknowledged the payment made by the petitioner and directed to take necessary steps to restore the gas connection of the petitioner. The respondents conducted physical inspection on the premises of the petitioner and thereby submitted report on 10.12.2020 in favour of the petitioner. On 19.01.2021, the petitioner again filed application before the respondents for restoring the gas connection but the respondents have not paid any heed. Such inaction is without lawful authority and is of no legal effect.

He further submits that the petitioner applied for restoration of gas connection on 06.09.2020 and the respondents received the same by giving endorsement under serial No. 793/1 dated 06.09.2020. It is apparent that the petitioner applied for restoration of the connection within 1(one) year, as such the case of the petitioner does not fall under Clause 7.2.5 of the গ্যাস বিপন্ন নিয়মাবলী, ২০১৪. Hence, the petitioner has the legal right to have the gas connection restored.

Per contra, Mr. Kamal Hossain Meahzi, learned Advocate for the respondent No. 2 submits that the petitioner applied for reconnection of the gas line after the expiry of 1(one) year from the date of disconnection i.e. on 23.10.2019 and as such according to Clause 7.2.5 of the Gas Bipoon Niomaboli, 2014 there is a bar in restoring the gas connection to the petitioner holding Customer ID No. 1040943.

We have heard the learned Advocates of both sides, perused meticulously the writ petition and respective annexures filed by the

petitioner, the application for discharging the Rule filed on behalf of the respondent No.2 and the respective annexure thereto.

It appears from the record that the gas line of the writ petitioner was disconnected on 23.10.2019 due to non-payment of the arrear bill of Tk. 3,27,602/-. Subsequently, the petitioner applied to the respondent No. 6 for reconnection of gas line on 06.09.2020 (Annexure-C). He filed another application to the Managing Director of Titas Gas Transmission and Distribution Company Limited, respondent No. 3 for reconnection on 15.11.2020 (Annexure-C1). Thereafter, he paid Tk. 3,92,707/= as arrear bill and Tk. 10,410/- as surcharge which in total stands at Tk. 4,03,117/-. The respondent No. 6 acknowledged the payment by their interdivisional note, vide memo No. মেটারবি-৬/৬৮৫ dated 09.12.2020 (Annexure-D). It is crystal clear that the petitioner applied for reconnection within one year from the date of disconnection. Hence, he is entitled to have reconnection of gas line and does not fall under Clause 7.2.5 and 7.2.1 of গ্যাস বিপণন নিয়মাবলী, ২০১৪. The Clauses 7.2 and 7.2.1 are reproduced below:

বিদ্যুৎ, জ্বালানী ও খনিজ সম্পদ মন্ত্রণালয়

জ্বালানী ও খনিজ সম্পদ বিভাগ

উন্নয়ন-২ অধিশাখা

প্রজ্ঞাপন

তারিখ: ০৫ আগস্ট ২০১৪

নং জ্বাখসবি/উঃ-২/বিধি-১১/২০১১-৬৫৪- “গ্যাস বিপণন নিয়মাবলী ২০১৪”

...

৭.২। স্থায়ীভাবে সংযোগ বিচ্ছিন্নকরণ

১। গ্রাহক কর্তৃক অবৈধভাবে স্বতন্ত্র সার্ভিস লাইন নির্মাণপূর্বক অথবা বিচ্ছিন্নকৃত রাইজারের মাধ্যমে অবৈধ সংযোগ স্থাপনপূর্বক অথবা অন্য কোন উপায়ে মিটার বাইপাস করে গ্যাস কারচুপি করা হলে;

২। যে কোন গ্যাস বিতরণ লাইন হতে অবৈধভাবে সংযোগ স্থাপন (মিটার বাইপাস অথবা সার্ভিস লাইনের সাথে অভ্যন্তরীণ লাইনের সরাসরি সংযোগ স্থাপন/কমিশনকৃত সার্ভিস লাইন হতে সংযোগ স্থাপন/বিচ্ছিন্নকৃত লাইন হতে অবৈধভাবে গ্যাস সংযোগ ইত্যাদি) করা হলে;

৩। অবৈধভাবে বিতরণ লাইন/সার্ভিস লাইন/রাইজার পরিবর্তন/স্থানান্তর করা হলে;

৪। গ্যাহক কর্তৃক দু'বার আরএমএস/সিএমএস-এ অবৈধ হস্তক্ষেপের মাধ্যমে গ্যাস কারচুপি করা হলে;

৫। অনাদায়ী পাওনার জন্য অস্থায়ীভাবে গ্যাস সংযোগ বিচ্ছিন্ন ব্যতীত অন্য যে কোন কারণে অস্থায়ীভাবে গ্যাস সংযোগ বিচ্ছিন্নের ৬(ছয়) মাসের মধ্যে এবং অনাদায়ী পাওনার ক্ষেত্রে ১(এক) বছরের মধ্যে পুনঃসংযোগ গ্রহণ করা না হলে;

৬। তিনবারের অধিক অস্থায়ীভাবে সংযোগ বিচ্ছিন্নকৃত গ্রাহক কর্তৃক পুনরায় সংযোগ বিচ্ছিন্নের কোন অপরাধ সংঘটিত হলে।

৭.২.১। স্থায়ীভাবে বিচ্ছিন্নকৃত গ্রাহক বিলুপ্ত গ্রাহক হিসেবে গণ্য হবে। স্থায়ীভাবে বিচ্ছিন্নকৃত কোন গ্রাহক পুনরায় গ্যাস সংযোগের আবেদন করলে দেনা পাওনা/বিরোধ নিষ্পত্তি সাপেক্ষে একই ঠিকানায় বিদ্যমান সংযোগের বিপরীতে পুনঃসংযোগ নতুন গ্রাহক হিসেবে বিবেচিত হবে।

...

(bold by us for giving emphasis)

Earlier in *Bangtek Woollen Draper Ltd. Vs. Government of Bangladesh and Others* in Writ Petition No. 3713 of 2016 (unreported judgment dated 02.06.2016), this Court observed:

“The gas line was disconnected for non-payment of arrear bill, not for establishing any illegal connection. Therefore, Clause 8.2 (N) has no manner of application in the case. The impugned decision shows a total non-application of mind.”

In that judgment, the Court directed the respondent to reconnect the gas connection of the petitioner's factory bearing customer code No. 3-38-000219-00-07-2 being named as M/S Bangtek Woollen Draper Ltd. within 7 (seven) days from the date of receipt of this judgment and order subject to payment of arrear bill, if any and other dues and charges including furnishing security deposit by the petitioner which are required by law for reconnection.

Being aggrieved by the decision passed by the High Court Division Managing Director Titas Gas Transmission and Distribution Company Ltd filed Civil Petition for Leave to Appeal No. 2070 of 2016 before the Appellate Division. Upon hearing, the Apex Court dismissed the Civil Petition for Leave to Appeal on 04.10.2017 and affirmed the judgment passed by the High Court Division. In ***Managing Director, Titas Gas Transmission & Distribution Company Ltd. Vs. Bangtek Woollen Draper Ltd. and others*** (unreported), the Appellate Division observed:

“Since the writ petitioner-respondent has deposited the arrear bills, we are of the view that in order to run the functions of the industry smoothly and to save the workers and staff of the said industry, the High Court Division rightly directed the writ respondents to connect the gas line after receiving the dues, charges and other security deposit etc ...”

Against the Judgment and Order dated 04.10.2017 passed by the Appellate Division, the leave petitioner filed Civil Review Petition No. 49 of 2018 which was also dismissed.

The above mentioned judgments and decisions are fully applicable to the case of the present petitioner.

The respondent No. 2 claimed that the gas connection of the petitioner was disconnected on 23.10.2019, but the petitioner applied for reconnection on 15.11.2020. He delayed 23 days to file an application for reconnection after the expiry of 01(one) year. Hence, there is a barrier for the respondents in restoring the gas connection of the petitioner due to Clause 7.2.5 of the গ্যাস বিপন্ন নিয়মাবলী, ২০১৪. We do not subscribe to such claim of respondent No. 2. Because, even if the petitioner has deposited the money after the expiry of 01(one) year, he is still entitled to have gas connection as per the ratio passed in ***Bangtek Woollen Draper Ltd. Vs. Government of Bangladesh*** which was affirmed by the Appellate Division.

In ***Bangtek Woollen Draper Ltd Vs. Government of Bangladesh and others*** (supra) observed:

“... the default in delaying one month in making the application for re-connection seems to be trivial in nature. In the sphere of public law, the emphasis should be on substance, rather than form (R.Vs. Secretary of State for the Home Department exp. Pierson (1986) AC 539.”

In view of the foregoing discussions and decisions, the inevitable conclusion is that the inaction of the respondents in restoring the gas connection of the petitioner, despite of acceptance of the outstanding dues, is hereby declared to be without lawful authority and is of no legal effect.

The respondents are directed to restore the gas connection of the petitioner bearing Customer ID No. 1040943 within 30(thirty) days from the date of receipt of this judgment.

The Rule is disposed of with the above observations and directions.

There is no order as to costs.

Let a copy of this judgment and order be communicated to the respondents at once.

Zafar Ahmed, J.

I agree.

Md. Ariful Islam Khan
Bench Officer